



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

APR 22 2002

DOT-E 11466
(FOURTH REVISION)

EXPIRATION DATE: March 31, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Monsanto Company
St. Louis, MO

(See Appendix A to this document for a list of additional grantees)

2. PURPOSE AND LIMITATION:

a. This exemption authorizes engines of motor vehicles to remain running while loading or unloading certain Class 3 materials at an ambient temperature below -12°C (10°F), to prevent engine starting problems during extremely cold weather. This exemption provides no relief from any Hazardous Materials Regulations (HMR) other than as specifically stated herein.

b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 177.837(a), the marking requirements of § 172.203(a) and § 172.302(c).

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5. BASIS: This exemption is based on the application of the Monsanto Company dated February 15, 2002, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/Hazardous Materials Description --	Hazard Class/Division	Identification Number	Packing Group
Ethyl alcohol	3	UN1170	II
Flammable liquid, n.o.s.	3	UN1993	II, III
Styrene, monomer, inhibited	3	UN2055	III
Toluene	3	UN1294	II
Triethylamine	3	UN1296	II

7. SAFETY CONTROL MEASURES: The engines of diesel powered motor vehicles may remain running while loading or unloading the class 3, packing group II and III materials specified in paragraph 6 at ambient temperatures below - 12°C (10°F), subject to the following conditions:
- a. The driver must attend the vehicle at all times during loading and unloading.
 - b. In addition to the driver, another qualified person who is aware of the nature of the hazardous material being transferred must be continuously present during the loading and unloading operation.
 - c. In the event of any spill or ignition, the engine must be stopped immediately.
 - d. On-site plant emergency personnel must be dispatched immediately in the event of a spill or ignition.
8. SPECIAL PROVISIONS: The marking requirements of § 172.203(a) and § 172.302(c) are waived.

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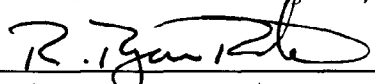
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:


for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for
Hazardous Materials Safety, Research and Special Programs
Administration, Department of Transportation, Washington, D.C.
20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the
Hazardous Materials Safety Homepage at
<http://hazmat.dot.gov/exemptions> Photo reproductions and
legible reductions of this exemption are permitted. Any
alteration of this exemption is prohibited.

PO: sdc